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TENTATIVE RULING

HEARING DATE: 07/21/2026

CASE NUMBER: 22STCV36312

CASE NAME: MICHAEL HAKIM vs 136 BEVERLY DRIVE, LLC;, et al.

MOVING PARTY: Michael Hakim

OPPOSING PARTY: 136 Beverly Drive, LLC.

PROCEEDING: Motion for leave to file third amended complaint

RULING SUMMARY: Plaintiff Michael Hakim's Motion for Leave to Amend to File Third Amended Complaint is denied.

Background

On November 16, 2022, Plaintiff Michael Hakim ("Plaintiff") filed his Complaint against Defendants (1) 136 Beverly Drive, LLC ("136 Beverly"); (2) 155 Beverly Drive, LLC ("155 Beverly"); (3) Colony Holdings, LLC ("Colony Holdings"); (4) Alexa Group, LLC ("Alexa Group"); (5) Ardmore Homes, LLC ("Ardmore Homes"); (6) Wilshire-Beverly No. 2, LLC ("Wilshire-Beverly No. 2"); (7) Berendo Group, LLC ("Berendo Group"); (8) Bristol Park, LLC ("Bristol Park"); (9) 415 Camden, LLC ("415 Camden"); (10) Chelsea Corners, LLC ("Chelsea Corners"); (11) HMH Enterprises, LLC ("HMH"); (12) Julian M. Holdings, LLC ("Julian M. Holdings"); (13) La Jolla Courtyard,

LLC ("LJ Courtyard"); (14) New Hampshire Apartments, LLC ("NH Apartments"); (15) Onyx Tower, LLC ("Onyx Tower"); (16) Paramount Apartments, LLC ("Paramount Apartments"); (17) Manhattan Homes, LLC ("Manhattan Homes"); (18) Princeville Properties, LLC ("Princeville Properties"); (10) Rosewood Corp., a California Corporation ("Rosewood Corp."); (11) Five45 Rossmore, LLC ("Five45"); (12) Roxbury Homes, LLC ("Roxbury Homes"); (13) Sebastian Group, LLC ("Sebastian Group"); (14) Sutton Place Partners, LLC ("SPP"); (15) Westminster Square Partners, LLC ("WSP"); (16) Wilshire Beverly Partners, LLC ("WBP"); (17) Sam Hakim ("Sam")^[1]; (18) The Sam Hakim Trust ("SH Trust"); (19) Ten30 BC, LLC ("Ten30"); (20) Said and Julia Hakim Revocable Trust ("S and J Trust"); (21) Farfalina 2022, LLC ("Farfalina"); (22) Julia Hakim ("Julia"); and (23) Said Hakim ("Said").

Plaintiff alleges that he is a Managing Member and owner of a 33 percent membership interest in LJ Courtyard. Plaintiff also alleges an ownership interest in Manhattan Homes. The Complaint also generally alleges that Plaintiff has ownership in the family business without specifying what the family business is.

On April 23, 2025, Sam, Julia, Said, SH Trust, and S and J Trust (collectively, "Hakim Defendants") filed a Motion for Judgment on the Pleadings, which was granted on July 17, 2025, with ten days leave to amend as to the corporate entities and Plaintiff's amendment limited to the corporate statute and allegations that Plaintiff is a member or manager of all the Defendant LLC's named in the Complaint or to identify the specific LLCs, of which he is a member/manager, for which he seeks inspection under Corporations Code section 17704.10.

On July 22, 2026, Plaintiff filed his First Amended Complaint ("FAC") against the following defendants: (1) 136 Beverly; (2) 155 Beverly Drive; (3) Colony Holdings; (4) Alexa Group; (5) Ardmore Homes; (6) Wilshire-Beverly No. 2; (7) Berendo Group; (8) Bristol Park; (9) 415 Camden; (10) Chelsea Corners; (11) HMM; (12) Julian M. Holdings; (13) LJ Courtyard; (14) NH Apartments; (15) Onyx Tower; (16) Paramount Apartments; (17) Manhattan Homes; (18) Princeville Properties; (10) Rosewood Corp.; (11) Five45; (12) Roxbury Homes; (13) Sebastian Group; (14) SPP; (15) WSP; (16) WBP; (17) Ten30; and (18) Farfalina (collectively "Corporate Defendants").

On August 06, 2025, Hakim Defendants submitted a Judgment of Dismissal, which granted and entered as judgment on July 30,

2025.

On September 08, 2025, Corporate Defendants filed their Demurrer to the FAC, which was sustained with 10 days leave to amend. On January 14, 2026, Plaintiff filed his Second Amended Complaint ("SAC") against Corporate Defendants, alleging two causes of action for (1) Accounting Pursuant to Corp. Code § 17704.10, and (2) Accounting pursuant to Corp. Code § 1601.

As alleged in the SAC, Plaintiff is a member of Corporate Defendants, which have relation to Hakim Defendants; Plaintiff was excluded from Corporate Defendants' affairs for several years; and Plaintiff seeks an accounting of Corporate Defendants' financial records and a judgment awarding Plaintiff the amounts found due by such accounting.

On April 29, 2026, Plaintiff filed a Motion for Leave to File a Third Amended Complaint ("TAC"). On July 08, 2026, Corporate Defendants filed their Opposition. On July 14, 2026, Plaintiff filed his Reply.

LEGAL STANDARD

Trial

courts may, in furtherance of justice and on any proper terms, allow a party to amend any pleading. (Code Civ. Proc., §473(a)(1); *Branick v. Downey Savings & Loan Association* (2006) 39 Cal.4th 235, 242.) Trial courts may also, in their discretion and after notice to the adverse party, allow, upon any terms as may be just, an amendment to any pleading or proceeding in other particulars; and may upon like terms allow an answer to be made after the time limited by this code. (Code Civ. Proc. §473(a); *Branick*, supra, 39 Cal.4th at 242.)

Leave to amend is generally liberally granted, provided there is no statute of limitations concern. (*Kolani v. Gluska* (1998) 64 Cal.App.4th 402, 411.) Additionally, "judicial policy favors resolution of all disputed matters in the same lawsuit." (*Kittredge Sports Co. v. Superior Court* (1989) 213 Cal.App.3d 1045, 1047.)

Trial courts may deny plaintiffs leave to amend if there is prejudice to the opposing party,

such as delay in trial, loss of critical evidence, or added costs of preparation. (Branic, *supra*, at 242.)

Under California Rules of Court, Rule 3.1324, a motion to amend a pleading before trial must (1) include a copy of the proposed amendment or amended pleading, which must be serially numbered to differentiate it from previous pleadings or amendments; (2) state what allegations in the previous pleading are proposed to be deleted, if any, and where, by page, paragraph and line number, the deleted allegations are located; and (3) state what allegations are proposed to be added to the previous pleading, if any, and where, by page, paragraph, and line number, the additional allegations are located. (Rules of Court, Rule 3.1324(a).) A separate supporting declaration specifying (1) the effect of the amendment; (2) why the amendment is necessary and proper; (3) when the facts giving rise to the amended allegations were discovered; and (4) the reason why the request for amendment was not made earlier must accompany the motion. (*Id.*, Rule 3.1324(b).)

DISCUSSION

Plaintiff seeks to further amend the complaint to re-insert two of the Hakim Defendants – Sam and Julia – who were dismissed with prejudice, as defendants. Plaintiff asserts that he would not be adding Hakim Defendants for the same action the Motion for Judgment on the Pleadings addressed, but rather for Breach of Fiduciary Duty, Civil Theft, and Declaratory Relief. Plaintiff contends that these claims were found upon review of Secretary of State Documents, including 2025 documents, when counsel was determining what claims and theories were available to Plaintiff. Plaintiff argues that leave should be granted because (1) unspecified “Defendants”[2] waited over two years after filing of the initial Complaint to file a Motion for Judgment on the Pleadings, disallowing Plaintiff the opportunity to refine his causes of actions; (2) the basis for such actions occurred in 2025; (3) the proposed amendments are based largely on the same facts as the SAC; (4) trial is scheduled for August 23, 2027, allowing ample time for discovery; and (5) unspecified “Defendants” would not be prejudiced by leave to amend.

Corporate Defendants argue that:

(1) Plaintiff’s attempt to add back in Sam and Julia violates the Court’s July 17, 2025 Order granting the Motion for Judgment on the Pleadings without leave

to amend as to the individual defendants; (2) final judgment has been entered as of July 30, 2025, dismissing Sam and Julia, and Plaintiff did not appeal; and (3) Plaintiff's proposed amendment is intended to bypass the applicable statute of limitations.

Corporate Defendants further argue that Plaintiff has cited no authority that would allow him avoid the bar of the dismissal and to bring Sam and Julia back into the action, and the Corporate Defendants would be severely prejudiced as the amendment would transform this case from an action for access to corporate records to an action for damages upon each Corporate Defendant, leading to a question of whether the case has been assigned to the proper division of the Los Angeles Superior Court. Corporate Defendants also contend that discovery would be transformed into a massive undertaking, and the timeline would be tight considering the five-year statute under Code of Civil Procedure section 583.310 will run on November 16, 2027.

In Reply, Plaintiff reiterates that the information underlying the new claims was found in 2025; *Goddard v. Security Title Insurance & Guarantee Co.* (1939) 14 Cal.2d 47 ("Goddard") allows the Court to allow previously-unasserted tort claims despite a pleading stage ruling, and Corporate Defendants are not prejudiced as they did not identify any discovery they have not taken, would need to take, or would not have time to take. Plaintiff contends that the Court can bring this case to trial within 16 months by: (1) allowing discovery to proceed in parallel with any pleadings-stage motions defendants might file; (2) condition summary judgment motions on stipulations to extend the time to bring the case to trial; and bifurcate claims against Corporate Defendants, and Sam and Julia.

On July 30, 2025, Sam and Julia were dismissed with prejudice, and Hakim Defendants were considered the prevailing party on Plaintiff's Complaint which contained one cause of action for accounting.

The gravamen of Plaintiff's argument that he is not barred from adding Sam and Julia as defendants due to *Goddard*. (See Mtn. at 6:17-25; see also Reply 5:20-25.) However, *Goddard* does not address this situation. Rather, *Goddard*, *supra*, 14 Cal.2d 47, 51-53, specifically the section Plaintiff cited, addresses *res judicata*:

[] The major

defense, and the only one which requires extended discussion, is that the judgment in the prior action in the federal court is *res judicata* and therefore a complete bar to the present action. To determine this point it may be desirable first to review some of the principles governing the effect of judgments of dismissal and judgments entered after the sustaining of demurrers without leave to amend.

"First, a

final judgment, rendered upon the merits by a court having jurisdiction of the cause, is conclusive of the rights of the parties and those in privity with them, and is a complete bar to a new suit between them on the same cause of action. This is the general doctrine of *res judicata*. (See 2

Freeman on Judgments, [5th ed.], sec. 627, p. 1321 et seq.; von Moschzisker, *Res Judicata*, 38 Yale L. J. 299; *Price v. Sixth*

Dist. Agricultural Assn., 201 Cal. 502 [258 Pac. 387].) Second, a

judgment not rendered on the merits does not operate as a bar. (*Campanella v. Campanella*, 204 Cal. 515 [269 Pac. 433]; 2 Freeman on Judgments, [5th ed.], sec. 723, p.

1530; 34 C. J. 774, sec. 1193.) Third, a judgment based upon the sustaining of a special demurrer for technical or formal defects is clearly not on the merits and is not a bar to the filing of a new action. (2 Freeman on Judgments, [5th ed.], sec. 745, p.

1569; 34 C. J. 797, sec. 1219.) Fourth, judgments based upon sustaining a

general demurrer have given rise to an apparent conflict of decision, and

careful distinctions must be drawn between the cases. (See von Moschzisker, *Res Judicata*, 38 Yale L. J. 299, 318 et seq.; Clark, *Code Pleading*, p. 367.) A judgment given after the

sustaining of a general demurrer on a ground of substance, for example, that an

absolute defense is disclosed by the allegations of the complaint, may be

deemed a judgment on the merits, and conclusive in a subsequent suit; and the

same is true where the demurrer sets up the failure of the facts alleged to

establish a cause of action, and the same facts are pleaded in the second

action. (2 Freeman on Judgments, [5th ed.] sec. 746, p. 1571; *Erganian v. Brightman*, 13 Cal. App. (2d) 696 [57 Pac. (2d) 971]; von Moschzisker,

Res Judicata, 38 Yale L. J. 299, 318, and cases cited.) But even a

judgment on general demurrer may not be on the merits, for the defects set up

may be technical or formal, and the plaintiff may in such case by a different

pleading eliminate them or correct the omissions and allege facts constituting

a good cause of action, in proper form. Where such a new and sufficient

complaint is filed, the prior judgment on demurrer will not be a bar. (*Newhall v. Hatch*,

134 Cal. 269 [66 Pac. 266, 55 L. R. A. 673]; *Terry v. Hammonds*,

47 Cal. 32; *Dyment v. Board*

of Medical Examiners, 93 Cal. App. 65 [268 Pac. 1073]; 2 Freeman on

Judgments, [5th ed.], secs. 747, 748; von Moschzisker, Res Judicata, 38 Yale L. J. 299, 318.) This result

has frequently been reached where the failure of the first complaint was in misconceiving the remedy, or framing the complaint on the wrong form of action. (2 Freeman on Judgments, [5th ed.], secs. 734, 735; von Moschzisker, Res Judicata, 38 Yale L. J. 299, 318) Fifth, an ordinary judgment of dismissal, for example, for want of prosecution, has the same effect as a nonsuit, that is, is considered not on

the merits and not a bar to another suit on the same cause of action, unless

the record shows that there was an actual determination on the merits. (Everts v. Blaschko, 17 Cal. App. (2d) 188 [61 Pac. (2d) 776]; Matteson v. Klump, 100 Cal. App. 64 [279 Pac. 669]; Campanella v. Campanella, 204 Cal. 515 [269 Pac. 433]; 2 Freeman on

Judgments, [5th ed.], sec. 753, p. 1582.)

Goddard does not address

whether, once a defendant has been dismissed with prejudice from an action, the plaintiff may seek to bring that defendant back into the action. And Plaintiff has offered not authority to support his argument supporting a right to do so.

Further, Plaintiff has

waited approximately four years to assert these claims, which would drastically alter the nature of the case. Plaintiff, while claiming that his counsel found these claims in 2025, engaged counsel of record, Jeff A. Manon September 04, 2024, two years ago and records could have been reviewed earlier in the action. Plaintiff has also conceded that “the proposed amendments are based largely on the same set of facts as those of the operative Complaint[.]” indicating that Plaintiff could have made the claim at an earlier point during the litigation.

(See Mtn. at 9:20-21.) This delay and the change in the nature of the action would prejudice Corporate Defendants who expected trial on August 23, 2027. Trial courts may deny the plaintiff's leave to amend if there is prejudice to the opposing party, such as delay in trial, loss of critical evidence, or added costs of preparation. (Branic, supra, at 242; see also Hirsu v. Superior Court (1981) 118 Cal.App.3d 486, 490.)

Accordingly, Plaintiff's Motion

for Leave to Amend is denied.

Conclusion

Plaintiff Michael Hakim's Motion

for Leave to Amend to File Third Amended Complaint is denied.

Date: 07/21/2027 _____ 2

William E. Weinberger

Judge, Los Angeles Superior Court

[1]

Plaintiff Michael Hakim and Defendants Sam Hakim, Julia Hakim, and Said Hakim share the same surname. While the Court addresses Michael Hakim as Plaintiff, it addresses Defendants Sam Hakim, Julia Hakim, and Said Hakim by their respective first names for the purpose of clarity. No disrespect is intended.

[2]

Plaintiff defines which parties compose of “the ‘LLCs’” and “the ‘Hakim Individuals’” at page 4, lines 2-15; however, “Defendants” is not defined by Plaintiff. (See Mtn. at 5:16-20.)